VIEWPOINT

ARUNDHATI KATJU
Lawyer representing the petitioners



"It's a misconception that same-sex marriage will affect the family values that Indians cherish. It is to enjoy and practise those family values that LGBTQ couples wish to get married. All values we cherish will come into effect if they are permitted to marry"

MENAKA GURUSWAMY
Lawyer representing the petitioners



"The LGBTQ people should have the right to a life of dignity available to others. It's not only a question of dignity but a bouquet of rights they are being denied... I cannot buy a Supreme Court Bar Association insurance for my family even though I am its member"



ANANYA KOTIA, *32*
Economist (left)

UTKARSH SAXENA, *34*
Lawyer and development economist

Kotia and Utkarsh currently live in Delhi. Their families are from Rajasthan and Uttar Pradesh, respectively

"The argument that the ability to procreate is a prerequisite for marriage doesn't have any place in law"

– UTKARSH SAXENA

'WE WISH TO HAVE CHILDREN'

I see no reason why the state should discriminate against homosexual couples," says Kotia. The couple moved the SC in January this year, seeking the right to get married to a person of their choice. As Utkarsh says, they are not asking for a new law, but recognition of same-sex union under the Special Marriage Act. They want gender-specific terms in law, such as 'husband', 'wife', 'male' and 'female', to be changed to 'person' or 'spouse'. That's crucial as there are related rights linked to the concept of marriage. "If we want to open a joint bank account, we can't, because we are not considered a family. I can't get into my partner's insurance policy.... If we send each other money, we will need to worry about income-tax laws. Marriage without rights will be hollow," says Kotia.

The couple hasn't got married yet, but they dream of having a family. "We want to have children. When we see other couples having children, we feel deprived. The notion that queer couples having children can negatively impact the emotional health of their children is totally misplaced," says Utkarsh.